UNITED STATES OF AMERICA
FEDERAL ENERGY REGULATORY COMMISSION

Interconnection of Large Loads to the Interstate Transmission System	))))	Docket No. RM26-4-000

COMMENTS OF THE PEOPLE OF THE STATE OF ILLINOIS
BY THE OFFICE OF THE ILLINOIS ATTORNEY GENERAL

I. INTRODUCTION

On October 23, 2025, U.S. Secretary of Energy Chris Wright issued an Advanced Notice of Proposed Rulemaking (ANOPR) pursuant to Section 403 of the Department of Energy Organization Act.[1] In response, FERC established this docket, No. RM26-4-000, issued a Notice Inviting Comments, and set the deadlines for submitting initial comments by November 21 and reply comments by December 5.

The Office of the Illinois Attorney General represents the People of the State of Illinois on public utility issues in proceedings before state and federal regulatory agencies and in state and federal courts. 15 ILCS 205/6.5(d). The Illinois Attorney General is vested with the "power and duty on behalf of the people of the State to intervene in, initiate, enforce, and defend all legal proceedings on matters relating to the provision, marketing, and sale of electric. . . service whenever the Attorney General determines that such action is necessary to promote or protect the rights and interests of all Illinois citizens, classes of customers, and users of electric. . . .services." 15 ILCS 205/6.5(c). The People of the State of Illinois have an interest in addressing the effect that large loads have had, and will continue to have, on electricity prices paid by Illinois residents,

[1] *See* U.S. Sec'y of Energy, Letter Communicating Advanced Notice of Proposed Rulemaking on Large Load Interconnection (Oct. 23, 2025) (hereinafter "ANOPR"), https://www.energy.gov/sites/default/files/2025-10/403%20Large%20Loads%20Letter.pdf.

particularly as those prices are affected by federal transmission and federal energy markets subject to the jurisdiction of the Commission.

II. COMMENTS

The People of the State of Illinois, by the Office of the Illinois Attorney General (IL OAG) are vitally concerned about the sudden growth of extra-large load customers in Illinois and across the country, and the effects that these projects are having on electricity customers. In Illinois, more than 9 million people rely on PJM Interconnection (PJM) and Commonwealth Edison Co. (ComEd) to deliver electricity, and about 3.5 million people rely on the Midcontinent Independent System Operator (MISO) and Ameren Illinois for their electric service in central and southern Illinois. In PJM capacity prices effective June 1, 2025 skyrocketed by approximately 833% increasing from $28.92 per MW-day to $269.92 per MW-day,[2] and further increased to $329.17 per MW-day for 2026-2027.[3] In the MISO area the summer capacity price increased by an astonishing $635 per MW-day, or approximately 2,122%, from $30 MW-day to $666.50 MW-day.[4] Overall total wholesale electricity prices increased by more than 40% in both RTOs, compared to the third quarter of 2024.[5]

This proceeding is in response to the Department of Energy's direction to FERC to consider and take action on the ANOPR. In its October 23, 2025 letter, the Secretary of Energy recognized that "we must ensure all Americans and domestic industries have access to affordable, reliable,

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[2] PJM, 2025/2026 Base Residual Auction Report, July 30, 2024, at p. 3, 2025_26_Base_Residual_Auction_Report_v4.pdf.
[3] PJM, 2026/2027 Base Residual Auction Report, July 22, 2025, at p. 3, 2026-2027-bra-report.pdf.
[4] MISO, Planning Resource Auction Results for Planning Year 2025-26, at slide 2 (reposted with corrections on May 29, 2025), https://cdn.misoenergy.org/2025%20PRA%20Results%20Posting%2020250529_Corrections694160.pdf.
[5] Monitoring Analytics, Quarterly State of the Market Report, 3Q 2025 at 17-19, https://www.monitoringanalytics.com/reports/PJM_State_of_the_Market/2025.shtml Potomac Economics, IMM Quarterly Report: Spring 2025, at slide 2, https://www.potomaceconomics.com/wp-content/uploads/2025/06/IMM-Quarterly-Report_Spring-2025-MSC.pdf.

and secure electricity."[6] At the same time, the letter references growing large loads, including Artificial Intelligence ("AI") data centers, "which will require unprecedented and extraordinary quantities of electricity and substantial investment in the Nation's interstate transmission system."[7] According to the PJM Independent Market Monitor these large loads drove the PJM 2025-26 BRA revenues up by 174%, with total capacity revenues increasing over $9 billion dollars.[8]

While wholesale and retail electricity prices are already showing the effect of the growth of large loads associated with AI data centers and other projects, the scale of pending projects is enormous. In an ongoing Illinois Commerce Commission docket reviewing the connection of large loads to the Commonwealth Edison distribution system, the utility's witness testified that large load interconnection requests accounted for only 80 MW in 2019, but jumped to 652 MW in 2022, to 3,931 MW in 2024, and to an astonishing 8,272 MW in 2025.[9] The <u>average</u> large load demand over the last twelve months equals 700 MW, which is roughly equivalent to the demand of 1,400 big box retail stores[10] and matches the demand of a small city.[11] In Illinois, the city of Naperville uses approximately 343 MW, has 60,000 meters, and a population of about 150,000.[12]

The disparity between the size of these new large loads and other loads that connect to the grid requires special treatment. For states like Illinois that rely on federal electricity markets to

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[6] ANOPR at 1.
[7] *Id.* at 1, 2.
[8] *See* Monitoring Analytics, Analysis of the 2025/2026 RPM Base Residual Auction Part G, June 3, 2025, p. 1, 13, Tbl. 7, https://www.monitoringanalytics.com/reports/reports/2025/IMM_Analysis_of_the_20252026_RPM_Base_Residual_Auction_Part_G_20250603_Revised.pdf.
[9] *Commonwealth Edison Company, Filing proposing changes to new service requests for large demand project applicants or customers (tariffs filed June 23, 2025)*, Ill.C.C. Docket No. 25-0677 (cons.), ComEd Ex. 1.0 at 6, https://icc.illinois.gov/docket/P2025-0677/documents/369550
[10] *Id.*
[11] Eliza Martin and Ari Peskoe, *Extracting Profits from the Public: How Utility Ratepayers Are Paying for Big Tech's Power*, Environmental and Energy Law Program, Harvard Law School, at 4 and fn. 3 (March 2025), https://eelp.law.harvard.edu/wp-content/uploads/2025/03/Harvard-ELI-Extracting-Profits-from-the-Public.pdf (City of Cleveland, Ohio has a 300 MW system).
[12] *See* https://naper.org/utilities.

provide electricity supply at a reasonable cost, large load projects create significant risks, including the risks of: (1) insufficient supply to meet existing demand and the additional demand of large load projects, (2) skyrocketing prices both in response to insufficient supply and to provide "incentives" in the hope that increased generator revenues will cause them to build sufficient generation to meet the large load demand, and (3) electricity shortages leading to blackouts or "load shed." These risks are unacceptable.

The People welcome the DOE's and FERC's attention to these critical issues and respond to the ANOPR as follows.

A. Federal and State jurisdiction over large loads

The scale of current AI data center load and other large loads presents extraordinary challenges to both states and the federal wholesale energy markets, which in turn presents complicated jurisdictional challenges. The ANOPR provides that "the proposal does not exert jurisdiction over any retail sales to the large load. Similarly, nothing in the proposed reforms governs the siting, expansion, or modification of generation facilities. Authority over expansion or siting of generation facilities remains reserved to the States, consistent with section 201(b)(1) of the FPA."[13] Similarly, under the Federal Power Act, load that connects to the distribution system, as determined by the Commission's seven factor test,[14] is subject to state jurisdiction and oversight by state public utility commissions.[15] This is consistent with section 201(b) of the

[13] ANOPR at P 15, citing 16 U.SC. § 824(b)(1).
[14] FERC Order No. 888, 61 Fed. Reg. at 21,620. The seven factor test considers: (1) local distribution facilities are normally in close proximity to retail customers; (2) local distribution facilities are primarily radial in character; (3) power flows into local distribution systems; it rarely, if ever, flows out; (4) when power enters a local distribution system, it is not reconsigned or transported on to some other market; (5) power entering a local distribution system is consumed in a comparatively restricted geographical area; (6) meters are based at the transmission/local interface to measure flows into the local distribution system; and (7) local distribution systems will be of reduced voltage.
[15] *See Commonwealth Edison Company, Filing proposing changes to new service requests for large demand project applicants or customers (tariffs filed June 23, 2025)*, Ill.C.C. Docket No. 25-0677 (cons.) (pending decision) (addressing terms and conditions to connect large loads of at least 50 MW to the ComEd distribution system). *See also Tri-State Generation and Transmission Assoc., Inc.*, 193 FERC ¶ 61,070 (Oct. 27, 2025) (rejecting a wholesale

Federal Power Act (FPA) that gives the Commission jurisdiction over the transmission of electric energy in interstate commerce and the sale of electricity at wholesale in interstate commerce, while excluding jurisdiction over "facilities used for the generation of electric energy or over facilities used in local distribution or only for transmission of electric energy in intrastate commerce, or over facilities for the transmission of electric energy consumed wholly by the transmitter."[16]

While the scope of the Commission's jurisdiction is established by the Federal Power Act, the United States Supreme Court in *Fed. Energy Regulatory Comm'n v. Elec. Power Supply Ass'n* ("*EPSA*"), found that the Commission can exercise jurisdiction over matters that directly affect federal markets and matters within the scope of federal jurisdiction.[17] In *EPSA*, the Court stated:

> Our analysis of FERC's regulatory authority proceeds in three parts. First, the practices at issue in the Rule—market operators' payments for demand response commitments—directly affect wholesale rates. Second, in addressing those practices, the Commission has not regulated retail sales. Taken together, those conclusions establish that the Rule complies with the FPA's plain terms. And third, the contrary view would conflict with the Act's core purposes by preventing all use of a tool that no one (not even EPSA) disputes will curb prices and enhance reliability in the wholesale electricity market.

The effect of the rapid and widespread growth of large loads on wholesale capacity and energy markets and on the growth of transmission investment demonstrates how, in the words of the Court in *EPSA*, "in point of fact if not of law—the wholesale and retail markets in electricity are inextricably linked."[18]

In the PJM area, the IMM has quantified the effect of new large load on wholesale capacity prices in the IMM analyses of the 2025-2026 and 2026-2027 RPM Base Residual Auctions.[19] Both

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generation and transmission cooperative's tariff filing under Section 205 of the FPA which sought to impose minimum monthly demand and energy requirements on large load customers because it would impermissibly require FERC to regulate the terms and conditions of state jurisdictional retail service).

[16] 16 U.S.C. § 824(b).

[17] *FERC v. Elec. Power Ass'n*, 577 U.S. 260, 276–277 (2016).

[18] *Id*. at 264.

[19] Monitoring Analytics, *Analysis of the 2025/2026 RPM Base Residual Auction Part G*, June 3, 2025, https://www.monitoringanalytics.com/reports/reports/2025/IMM_Analysis_of_the_20252026_RPM_Base_Residual

the PJM and MISO IMMs have identified large increases in both federal energy market prices and transmission charges in their State of the Market Reports.[20] Adopting clear rules on the interconnection of large loads to the transmission system is necessary to address the effect that these outsized loads have on the wholesale electricity markets and on the transmission system and to prevent practices that will lead to unjust and unreasonable cost shifts and prices.[21]

While large loads have had a direct effect on wholesale rates and transmission charges, the ANOPR correctly notes the limits of Commission jurisdiction. It notes that retail rates as well as the siting, expansion, or modification of generation facilities are subject to state, not federal, jurisdiction.[22] The treatment of large load interconnection as federal or state depends on the seven-factor test,[23] and large loads that connect at the transmission level should be subject to uniform rules. Large loads that connect at the distribution level are subject to state distribution utility tariffs, subject to public utility commission review.[24]

B. Definition of Large Load

The ANOPR recommends that the definition of large loads for purposes of federal jurisdiction be set at 20 MW to match the capacity of generating facilities that are subject to a

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_Auction_Part_G_20250603_Revised.pdf; Monitoring Analytics, Analysis of the 2026/2027 RPM Base Residual Auction Part A, Oct. 1, 2025, https://www.monitoringanalytics.com/reports/Reports/2025/IMM_Analysis_of_the_20262027_RPM_Base_Residual_Auction_Part_A_20251001.pdf.

[20] *See* Monitoring Analytics, Quarterly State of the Market Report, 3Q 2025 at 17-19, https://www.monitoringanalytics.com/reports/PJM_State_of_the_Market/2025.shtml *See also* Monitoring Analytics, Analysis of the 2026/2027 RPM Base Residual Auction Part A, October 1, 2025, https://www.monitoringanalytics.com/reports/Reports/2025/IMM_Analysis_of_the_20262027_RPM_Base_Residual_Auction_Part_A_20251001.pdf. Potomac Economics, IMM Quarterly Report: Spring 2025, at slide 2, https://www.potomaceconomics.com/wp-content/uploads/2025/06/IMM-Quarterly-Report_Spring-2025-MSC.pdf.

[21] ANOPR at para. 14.

[22] ANOPR at para. 15.

[23] ANOPR para. 18; *see* footnote 13 *supra.*

[24] ANOPR at para. 18; *Commonwealth Edison Company, Filing proposing changes to new service requests for large demand project applicants or customers (tariffs filed June 23, 2025)*, Ill.C.C. Docket No. 25-0677 (cons.)(tariff revisions proposed to apply to loads of at least 50 MW), https://icc.illinois.gov/docket/P2025-0677/documents

standard set of interconnection procedures.[25] The IL OAG does not object to this threshold and supports matching the capacity size of generating facilities and equivalently large loads. As one point of reference, in the ComEd service area, which includes Chicagoland, the largest distribution customer class includes load that exceeds 10 MW.[26] The 20 MW standard proposed in the ANOPR is twice as large as the ComEd "extra large load."

While the IL OAG supports 20 MW as the threshold for large load rules and procedures, PJM is currently discussing rules and procedures to apply to 50 MW large loads, subject to certain exclusions for essential health and public safety facilities, such as hospitals, police, and fire facilities, 911 facilities, and wastewater treatment facilities.[27] Similarly, in Illinois ComEd has suggested that rules related to interconnection costs, deposits, and other procedures apply to large loads of 50 MW or more.[28] Whether a 20 MW or a 50 MW threshold is appropriate, the key factors are whether the large load customer has 24/7 operations, requires service at high voltage, presents high levels of concentrated demand, or has other characteristics that indicate that it should be included in the customer class that has direct effects on federal markets and the bulk power system.

C. Load and generation should be studied together prior to connection to the transmission grid.

The ANOPR suggests that "to the extent practicable, load and hybrid facilities should be studied together with generating facilities."[29] It describes "hybrid facilities" as loads "seeking to

[25] ANOPR at para. 7, 19.
[26] Ill. C. C. No. 10, Original Sheet No. 137.
[27] PJM Interconnection, Critical Issue Fast Path - Large Load Additions, PJM Conceptual Proposal and Request for Member Feedback, page 12 (Aug. 18, 2025), https://www.pjm.com/-/media/DotCom/committees-groups/cifp-lla/2025/20250818/20250818-item-03---pjm-conceptual-proposal-and-request-for-member-feedback---presentation.pdf.
[28] *See* footnote 23 *supra*.
[29] ANOPR at para. 20.

share a point of interconnection with new or existing generation facilities."[30] The effect of large loads on the wholesale market and the transmission grid is to a great extent dependent on whether the large load is matched with new generation as hybrid or contracted facilities.

Large load customers, particularly those that run AI, require a new approach to securing generation. Treating large loads and data centers as if they are the same as traditional organic load growth ignores the unique nature of this load. Large loads requesting connection to the grid have already resulted in unpredictable and unsustainable increases to electricity charges for customers who rely on federal markets to produce just and reasonable rates and raised the risks of targeted curtailment and even blackouts.[31]

The ANOPR should expressly include discussion of requiring large load to be matched with equivalent new generation in order to connect to the federal transmission system. New load and generation may be sited at the same point of interconnection (*i.e.* hybrid facilities), but to minimize costs on the transmission system they should be sited within the smallest applicable market area even if they are not at the same point of interconnection. This goal is consistent with paragraph 20 of the ANOPR that posits that "to the extent possible, load and hybrid facilities should be studied together with generating facilities."[32]

The requirement that 20 MW and larger loads must be paired with new generation in order to connect to the transmission system recognizes their extraordinary size and characteristics (*e.g.* 24/7 operation) as well as the impact that they can and are already having on federal wholesale energy markets. In addition to driving up prices and possibly causing voltage levels disruptions

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[30] ANOPR at para. 12.
[31] PJM Interconnection, Critical Issue Fast Path - Large Load Additions, PJM Conceptual Proposal and Request for Member Feedback, pages 9-15 (Aug. 18, 2025) (Non-capacity backed load proposal)., https://www.pjm.com/-/media/DotCom/committees-groups/cifp-lla/2025/20250818/20250818-item-03---pjm-conceptual-proposal-and-request-for-member-feedback---presentation.pdf.
[32] ANOPR at para. 20.

in the event of unplanned or unmanaged usage changes or outages, new large load contracts with generators who currently serve the aggregate load of electricity customers throughout the country, from residential customers to major industrial load, will siphon power from the grid and leave customers who rely on the bulk power system vulnerable to scarcity pricing and possible shortages and blackouts. The ANOPR must adopt a framework that addresses these risks and protects current electricity customers from the distortions caused by unique loads that rival the size of cities with hundreds of thousands of people.

D. Study deposits and other obligations incurred prior to interconnection should be sufficient to ensure that only projects that are ready to be implemented proceed through the process.

As part of the pairing of large load and generation, whether "hybrid" facilities or simply paired facilities, it is appropriate for FERC to adopt tailored study deposits, readiness requirements, and withdrawal penalties.[33] The extent to which current rules are effective or additional financial penalties are required to avoid the effect of speculation needs further FERC review in light of the widespread concern that the number of large loads requesting service is excessive.[34] For example, one study concluded that the currently estimated data center growth would require more semiconductor chips than chip manufacturers can produce.[35] Study deposits, readiness requirements, and withdrawal penalties must be designed to ensure that large loads and

[33] ANOPR at para. 21.

[34] According to ComEd's witness in a pending Illinois Commerce Commission docket, "ComEd's current pipeline of large demand projects 108 comprises over 75 unique projects that total over 28,000 MW of maximum demand. For context, ComEd's all-time system peak demand in its 118-year history, set in 2011, is just shy of 24,000 MW. In other words, the large-demand projects known to ComEd today have a cumulative maximum demand that is larger than the all-time ComEd system peak." *Commonwealth Edison Company, Filing proposing changes to new service requests for large demand project applicants or customers (tariffs filed June 23, 2025)*, Ill.C.C. Docket No. 25-0677, filed on Aug. 21, 2025, https://icc.illinois.gov/docket/P2025-0677/documents/369550 *See also* Resource Adequacy Policy Session 2 Documents at 104-110 (Feb. 20, 2025) available at: https://icc.illinois.gov/meetings/list/policy-session.

[35] London Economics International, *Uncertainty and upward bias are inherent in data center electricity demand projections* (July 8, 2025), https://www.londoneconomics.com/lei-finds-headline-us-data-center-energy-demand-could-not-be-supported-by-projected-global-chip-supplies/.

associated generation have the resources to proceed, are not speculative, and do not waste utility and other resources on projects that are not ready to implement. These issues should be subject to rulemaking.

E. FERC should examine specifying injection and withdrawal rights as well as system protection requirements to protect the integrity of the grid and existing customers.

The ANOPR asks whether hybrid facilities should be studied based on the amount of injection and/or withdrawal rights requested and whether hybrid interconnections should be "required to install system facilities necessary to prevent unauthorized injections and withdrawals."[36] Given the size of the large loads that seek connection to the grid, these issues are critical to protect the grid from sudden, unpredictable, or unexpected changes in either demand or supply. The technical requirements for these requirements should be part of the rules governing large load connections.

F. Large load rules should not rely on curtailment of large loads given the risks and technical challenges associated with curtailment.

The ANOPR asks whether large loads that agree to be curtailable should be expedited.[37] The preliminary question is whether curtailment of large loads is feasible and will protect other customers. There are technical questions as to the speed with which large loads can be ramped down and removed from the grid, the available hardware to provide system protection in the event of a curtailment event, and the effect of rapid demand ramp down on necessary voltage levels. For example, NERC issued an alert on September 9, 2025 outlining risks emerging from the increased penetration of large loads across the bulk power system.[38] NERC explained that large load

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[36] ANOPR at para. 22-23.
[37] ANOPR at para. 24.
[38] North Am. Elec. Reliability Corp., *Industry Recommendation: Large Load Interconnection, Study, Commissioning, and Operations* (Initial Distribution: Sep. 9, 2025), https://www.nerc.com/initiatives/large-loads-action-plan (heading "Industry Alert").

customers have increasingly caused disturbances in the bulk power system, and that such "[r]apid, major swings in load, experienced both in typical operations as well as in response to grid disturbances, can impact the BPS's ability to maintain frequency, regulate transmission voltage, and otherwise maintain stability."[39]

Further, clarity is needed on how curtailment requirements would be enforced. To the extent that large loads are served by distribution utilities that are not subject to federal jurisdiction, the mechanisms for curtailment may not accommodate targeted curtailment of specific large loads. Relying on curtailment to protect the reliability of electricity service to the hundreds of millions of consumers that rely on the bulk power grid puts all customers at risk of blackouts due to insufficient supply or other grid emergency.

Curtailment of load should not be considered a factor or option when connecting large loads before the mechanisms to implement curtailment including system protections, the costs as well as penalties resulting from curtailment, and the risks to other customers are fully considered and incorporated into any curtailment provision.

G. The costs imposed on the transmission system by large loads should be borne exclusively by large loads.

The costs of large load, hybrid facilities, and associated generation should be paid exclusively by the large load seeking to connect to the system. The ANOPR addresses cost for "upgrades that …are assigned through the interconnection studies" and whether those costs "should be offset through a crediting mechanism."[40] First, all costs caused by the large load or

[39] *Id*. NERC recommends "enhancements to interconnection processes, BPS planning studies and models, validation of installed facility equipment, and operational communication" for large load customers because of the specific risks attendant to such customers' "comparatively large size, unique end-use operational characteristics, unique facility design, and unique operational performance."

[40] ANOPR at para. 25.

hybrid customer should be paid by the parties imposing those costs, consistent with fundamental ratemaking principles. Requiring a large load customer to pay all installation and upgrade costs ensures that the cost-causer pays for the system upgrade. This prevents socialization of system costs that do not benefit the breadth of ratepayers and prevents stranding the costs of the upgrade if the customer's business fails. When a large load or other customer provides "Contribution in Aid of Construction" or "CIAC" to cover its costs, shareholders or other utility investors supply the investment to cover the system upgrade costs that it causes. This gives the large load customer financial control over its investment in its project and protects other customers from potentially stranded costs.

Second, when customers pay the full cost that they impose on the system through a CIAC payment, it is not necessary to use a crediting mechanism to cover those costs. A crediting mechanism requires that the transmission or distribution utility fund the upgrade and slowly recover the upgrade costs, usually over the depreciable life of the plant. This exposes both the large load customer and all other customers to the collection risks associated with time, including whether the large load customer will continue to operate throughout the life of the upgrade. In addition, the cost is subject to the utility's rate of return which may be higher than the rate available to the large load. The requirement that the large load cover its upgrade costs through a CIAC payment could lower financing costs and avoids the risk that its load will decrease or disappear, leaving other customers to pay the remaining costs.

III. CONCLUSION

The IL OAG appreciates the DOE's and FERC's efforts "to ensure all Americans and domestic industries have access to affordable, reliable, and secure electricity."[41] The IL OAG is

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[41] *See* ANOPR, *supra* note 1 (introducing ANOPR in letter).

authorized by Illinois law to protect the public's interest in adequate, safe, reliable, cost-effective electric service.[42] The growth of large load customers, particularly the growth of data centers, has dwarfed recent growth, caused dramatic price increases, and requires close attention by regulators. The IL OAG looks forward to participating in the NOPR resulting from the Department of Energy letter.

Respectfully submitted,

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[42] 15 ILCS 205/6.5.

CERTIFICATE OF SERVICE

I hereby certify that the foregoing has been served upon each party designated in the official service list compiled by the Secretary in this proceeding by email.

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